

## 26PR00447 Matter of David G. Shaw Trust

County: sonoma

Division: Probate

Hearing date: 2026-07-31

Motion: Petition to Compel William P. Donahue to Provide an Accounting; to Provide Information Requested of Trustee's Actions; for Removal of Trustee and Appointment of Successor; for Redress and Surcharge Against William P. Donahue for Breach of Trust

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Tentative Ruling: The petition is GRANTED in part and CONTINUED in part as set forth below.

The request for an accounting is GRANTED. William P. Donahue is ordered to deliver a code compliant trust accounting, covering the entire period that he has served as trustee, to the petitioners by September 18, 2026.

As for the remainder of the relief requested, the matter is CONTINUED to November 6, 2026 at 9:30 a.m. in Department 63 due to defective notice. The notice of hearing on a pleading filed in a proceeding under the Probate Code must state the complete title of the pleading to which the notice relates. California Rules of Court Rule 7.50. The notice of hearing does not state the complete title of the pleading here, so the notice is defective. Also, a beneficiary of a specific gift, Jim Kistler, is not served, and there is no explanation for the lack of notice.